



CHAPTER xx.

An Act for conferring further powers upon the A.D. 1933.
Great Western Railway Company and for other
purposes. [28th June 1933.]

WHEREAS it is expedient that the Great Western Railway Company (in this Act called "the Company") should be empowered to make and maintain the railway and other works and to exercise the powers by this Act authorised and conferred upon them and to acquire for the purposes of this Act and for the general purposes of their undertaking and works connected therewith certain lands houses and buildings in this Act described or referred to and that the construction of a branch railway already completed which is described in this Act should be sanctioned and confirmed :

And whereas plans and sections showing the lines and levels of the railway and other works by this Act authorised and plans showing the lands by this Act authorised to be acquired compulsorily and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerks of the county councils and town clerks of the several administrative counties and county boroughs respectively within which such railway and other works will be constructed and such lands are situated and are hereinafter respectively referred to as the deposited plans sections and books of reference :

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And whereas it is expedient that the Company should be authorised to raise money for the general purposes of their undertaking by the creation and issue of stock and by borrowing and the creation and issue of debenture stock and that the powers in this Act contained should be conferred on the Company with respect to such stock and debenture stock and with respect to any shares or stock or debenture stock which the Company are authorised to create by any former Act of Parliament or order or scheme having the force of an Act of Parliament and which have not already been issued :

And whereas by an indenture made the twelfth day of May one thousand nine hundred and nine (a copy of which is set forth in the Second Schedule to this Act) certain land in the borough of Oswestry in the county of Salop was (subject to the restrictive covenants and conditions therein contained) conveyed to certain persons therein named as trustees upon trust to permit the same to be used for the purpose of an institute or club for the benefit of the employees of the Cambrian Railways Company and of such other persons as the committee in the said indenture referred to with the approval of the said trustees might admit to participate in the use and enjoyment thereof :

And whereas in consequence of the amalgamation of the undertaking of the Cambrian Railways Company with the undertaking of the Company under the provisions of the Railways Act 1921 there are now no employees of the Cambrian Railways Company and it is expedient that employees of the Company should be entitled to the benefit of the trusts created by the said indenture in accordance with the provisions of this Act :

And whereas it is also expedient that the present trustees of the said indenture should be discharged and that the said land together with the buildings erected thereon known as the Cambrian Institute should be vested in the Company and that the Company should hold such land and premises upon the trusts contained in the said indenture so far as the same are applicable but subject to the modifications thereof in this Act contained :

And whereas it is expedient that the time now limited for the compulsory purchase by the Company of certain lands and for the completion of certain railways and

works authorised to be acquired or constructed under various Acts relating to the Company should be extended as provided by this Act : A.D. 1933.
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And whereas it is expedient that the time now limited by the Great Western Railway (Swansea North Dock Abandonment) Act 1928 for the compulsory purchase by the mayor aldermen and burgesses of the county borough of Swansea of certain lands for the construction of Works Nos. 3 4 and 5 by that Act authorised should be extended as provided by this Act :

And whereas it is expedient that the Company should be authorised to abandon and discontinue the maintenance and use of certain railways and of a portion of the Stourbridge Extension Canal in this Act mentioned :

And whereas it is expedient that the Company should be authorised to apply their funds to the purposes of this Act :

And whereas it is expedient that some of the provisions of the existing Acts of the Company should be amended or repealed and that the other powers in this Act mentioned should be conferred :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the Short title.
Great Western Railway Act 1933.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act (that is to say) :— Incorporation of
general
Acts.

The Lands Clauses Acts :

Provided that—

(1) any question of disputed compensation under this Act or any Act incorporated therewith

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(other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the Board of Trade on the application of either party;

- (2) section 34 of the Lands Clauses Consolidation Act 1845 shall be read and have effect subject to the following proviso in all cases in which notice of the effect of such proviso accompanies any offer of purchase money and compensation made by the promoters:

Provided that in the event of a party to whom a sum shall have been offered by the promoters at least ten days before the commencement of the hearing before the arbitrator failing within ten days of the making of the offer to notify the promoters in writing that he accepts the same all the costs and expenses of the promoters of and incidental to the arbitration incurred by them after the date of the offer shall in the event of his subsequently accepting such offer be borne by him including any fees and expenses of the arbitrator; and

- (3) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Company and shall be sufficient without the addition of the sureties mentioned in that section:

The Railways Clauses Consolidation Act 1845:

Part I (relating to the construction of a railway) and Part II (relating to extension of time) of the Railways Clauses Act 1863:

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the A.D. 1933,
means of enforcing the payment of calls; —

The forfeiture of shares for non-payment of calls :

The remedies of creditors of the Company against the shareholders:

The borrowing of money;

The conversion of the borrowed money into capital:

The consolidation of shares into stock; and

The provision to be made for affording access to the special Act by all parties interested: and

Part I (relating to cancellation and surrender of shares) Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and all distances and lengths stated in any description of works or lands shall be read and have effect as if the words “or thereabouts” were inserted after each such distance or length And—

The expression “ the railway ” means the new railway by this Act authorised ;

The expressions “order” and “scheme” shall respectively mean any order made under the Light Railways Acts 1896 and 1912 as amended by the Railways Act 1921 and any scheme under the Railways Act 1921 or any other order or scheme having the force of an Act of Parliament.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority or water board and shall be construed as if "local authority" and "water board" were mentioned in those sections in addition to "company" or "society" provided that any

Protection of gas and water mains of local authorities.

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Power to
Company to
make new
railway and
works.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections relating thereto the railway hereinafter described with all proper works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company. The railway hereinbefore referred to and authorised by this Act is—

A railway (No. 2) 4 furlongs and 4 chains in length wholly in the parish of Little Somerford in the rural district of Malmesbury in the county of Wilts commencing by a junction with the Company's Malmesbury branch railway and terminating by a junction with the Company's South Wales and Bristol direct railway.

Power to
deviate.

6. In making the railway and works in connection therewith by this Act authorised the Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and five feet downwards or to such further extent as they may find necessary or convenient and as may be sanctioned by the Minister of Transport.

Rates and
charges.

7. For the purposes of tolls fares rates and charges and for all other purposes the railway shall form part of the undertaking of the Company.

Power to
Company
to make
alterations
of roads
footpaths
&c.

8. Subject to the provisions of this Act the Company may make and execute in the lines and according to the levels shown upon the deposited plans and sections relating thereto the bridge and other works and the new footpaths and the alterations and diversions of road and footpaths and other works hereinafter mentioned and may stop up and discontinue the portions of footpaths

to be stopped up or diverted and exercise the other powers hereinafter mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company (that is to say):—

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In the parish of St. Columb Major in the rural district of St. Columb Major in the county of Cornwall—

A widening on both sides of the bridge carrying the Company's Newquay branch railway over the road leading from Truro to St. Columb Major at the eastern end of St. Columb Road station.

In the borough of Kidwelly in the county of Carmarthen—

They may alter the levels of so much of the road leading from Carmarthen to Llanelly which is carried over the Company's Burry Port and Gwendreath Valley railway by means of a bridge at a point 2 chains west of Ty-coch halt as lies between points respectively 2 chains north and 1 chain south of that bridge:

Provided that notwithstanding anything shown on the deposited sections the gradient of the altered road shall not be steeper than 1 in 30 on the southern side and 1 in 18 on the northern side of the said bridge.

In the parishes of East Challow and Grove in the rural district of Wantage in the county of Berks—

They may alter and divert so much of the footpath which crosses the Company's main line on the level at a point 5 chains west of the bridge carrying the road leading from Denchworth to Wantage over that railway as lies between the northern boundary of the Company's property and a point in that footpath 2 chains south thereof.

In the city and county borough of Bristol in the county of Gloucester—

They may stop up and discontinue (a) so much of the footpath (hereinafter called "the first-mentioned footpath") which crosses the

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Company's Bristol and South Wales Union railway on the level at a point 23 chains south of the bridge carrying Lockleaze Lane over that railway as lies between the western boundary of the Company's property and a point in that footpath 8 chains east thereof and (b) so much of the footpath which crosses that railway on the level at a point 11 chains south of the said bridge as lies between the boundaries of the Company's property and in lieu thereof they may construct (i) a new footpath along the western boundary of the Company's property connecting the said footpaths (ii) a new footpath from a point in the said new footpath 5 chains north of its junction with the first-mentioned footpath to the said point in the first-mentioned footpath and may carry the same over the said railway by a footbridge and (iii) a new footpath along the eastern boundary of the Company's property connecting the first-mentioned footpath with the new footpath secondly described.

In the parishes of Norton Fitzwarren and Bishop's Hull Without in the rural district of Taunton in the county of Somerset—

They may alter and divert so much of the footpath which crosses the Company's Bristol and Exeter railway on the level at a point 2 chains east of Norton Fitzwarren station as lies between the boundaries of the Company's property and may carry the same over that railway by a footbridge.

In the parish of Norton Fitzwarren in the rural district of Taunton in the county of Somerset—

They may alter and divert so much of the footpath which crosses the said Bristol and Exeter railway on the level at a point 3 chains west of Norton Fitzwarren station as lies between the boundaries of the Company's property and may carry the same over that railway by a footbridge.

In the urban district of Bedwellty in the county of Monmouth—

They may stop up and discontinue all rights of way (if any) across and on the level of the Company's Brecon and Merthyr railway and the

sidings adjacent thereto between the subway under that railway and the bridge carrying St. Davids Road over that railway situate respectively 5 chains and 22 chains south of Pengam station.

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In the county borough of Merthyr Tydfil in the county of Glamorgan—

They may stop up and extinguish all rights of way under the bridge carrying the Company's Taff Bargoed branch railway situate at a point 38 chains north-west of Pendarren halt.

9. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection of the county council of the administrative county of Cornwall (in this section referred to as "the county council") shall unless otherwise agreed in writing between the county council and the Company have effect (that is to say):—

For pro
tection of
Cornwall
County
Council.

(1) The Company shall reconstruct the existing bridge carrying the Newquay branch railway over the county road from Truro to St. Columb Major at the eastern end of St. Columb Road station and construct the widening of the said bridge by this Act authorised as a girder bridge with a clear span of forty feet measured at right angles to the centre line of the road and on the completion thereof the county council shall repay to the Company the reasonable additional cost of so much of the reconstructed bridge as will carry one line of railway with a clear span of forty feet beyond the cost which would be incurred in reconstructing the said existing bridge with a span of twenty-five feet together with an amount to be agreed between the Company and the county council or settled by arbitration representing the difference between the capitalised cost of maintaining and renewing so much of the reconstructed bridge as will carry one line of railway and the capitalised cost of maintaining and renewing the said existing bridge :

(2) The Company shall dedicate to the use of the public free of cost the land necessary to widen

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the said road under the said widened and reconstructed bridge to forty feet and on completion of such widening and reconstruction the county council shall take over such land as part of the existing road :

- (3) Any difference arising between the county council and the Company respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed (failing agreement) at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory re-enactment or modification thereof shall apply to any such reference and determination.

Power to
Company to
acquire
additional
lands.

10. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take use and appropriate for the general purposes of their undertaking and works connected therewith and for providing increased accommodation and for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company all or any of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say) :—

In the county of Gloucester—

Lands in the borough of Cheltenham lying on and adjoining the southern side of the Company's Hatherley loop line and extending between points respectively 9 chains and 13 chains east of the bridge carrying that railway over Hatherley Road.

Lands in the city and county borough of Bristol lying on and adjoining the western side of Ashton Avenue and extending from the bridge which carries Ashton Road over the Company's Bristol and Portishead railway to a point 2 chains south of Ashton swing bridge over the river Avon.

In the county of Cornwall—

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Lands in the parish of St. Columb Major in the rural district of St. Columb Major lying on and adjoining the southern side of the Company's Newquay branch railway and extending in an easterly direction for a distance of 4 chains from the bridge which carries that railway over the road leading from Truro to St. Columb Major near St. Columb Road station.

In the county of Monmouth—

Lands in the urban district of Risca lying on and adjoining the northern side of the Company's Nine Mile Point branch railway and extending between points respectively 14 chains and 52 chains west of the bridge carrying that railway over the river Ebbw.

Lands in the urban district of Abercarn lying on and adjoining the eastern side of the Monmouthshire (Western Valleys) railway of the Company and extending between points respectively 3 chains and 7 chains south of the bridge over that railway giving access to the Celynen collieries.

Certain other lands in the said urban district lying on and adjoining the western side of the said railway and situate at a point 4 chains south of the said bridge and extending from the western boundary of the Company's property to the road leading to the said bridge.

Lands in the urban district of Mynyddislwyn lying on and adjoining the south-western side of the Company's Pennar branch railway and extending between points respectively 9 chains and 12 chains south-east of the level crossing near Cwrt-y-bela school by that railway of the road leading from Manmoel to Argoed.

In the county of Glamorgan—

Lands in the urban district of Aberdare lying on and adjoining the north-eastern side of the Dare branch of the Vale of Neath railway of the Company and extending between points respectively 1 chain and 9 chains south-east of Black Lion Crossing halt.

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For pro-
tection of
Bristol Cor-
poration.

11. Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions for the protection of the lord mayor aldermen and burgesses of the city of Bristol (in this section referred to as "the corporation") shall unless otherwise agreed in writing between the Company and the corporation apply and have effect (that is to say) :—

- (1) In this section "the signed plan" means the plan signed in duplicate by Herbert Marston Webb on behalf of the corporation and by Raymond Carpmael on behalf of the Company of which plan one copy has been deposited with the corporation and the other copy with the Company :
- (2) The Company shall not enter upon take or use the land coloured red on the signed plan or any part of that land :
- (3) (a) The Company shall as soon as practicable after they shall have acquired the lands coloured yellow and blue on the signed plan and the benefit of all restrictive or other covenants or conditions relating to the maintenance or use of those lands or shall otherwise have extinguished or procured the extinguishment of such covenants or conditions reconvey to the corporation the said lands coloured yellow for an estate in fee simple free from incumbrances ;
(b) The price to be paid by the corporation to the Company in respect of the reconveyance of the said lands coloured yellow shall be a sum bearing to the aggregate of the price or compensation paid by the Company to the corporation in respect of the acquisition of the said lands coloured yellow and blue and of the price or compensation paid by the Company in respect of the acquisition or extinguishment of such covenants or conditions as aforesaid the same proportion as the area of the said lands coloured yellow bears to the total area of the said lands coloured yellow and blue :
- (4) It shall not be lawful for the Company or any person claiming through or under them except with the consent in writing of the corporation

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to erect or construct or to bring forward any building construction or erection or any part thereof or any addition thereto (other than boundary walls or fences of not less than four feet and not exceeding six feet in height) on or so as to project over or to make any permanent excavation on or under any part of the said lands coloured blue which is situate at a less distance than fifteen feet from the nearest part of Ashton Avenue or at a less distance than thirty feet from the nearest part of Ashton Road as proposed to be widened :

- (5) Neither the Company nor any person claiming through or under them shall (except in so far as it may be reasonably necessary so to do for the protection of the amenities of Ashton Avenue) cut down lop damage or otherwise interfere with any of the trees or shrubs growing upon the said lands coloured blue other than such trees or shrubs as it may be reasonably necessary or desirable for the Company to cut down lop damage or otherwise interfere with for the purpose of rendering the Company's land suitable for the erection of buildings with a frontage to Ashton Avenue :
- (6) Before commencing to erect any building or structure upon any part of the said lands coloured blue the person proposing to erect the building or structure shall submit to the corporation for their reasonable approval plans and drawings of the elevations of the building or structure proposed to be erected and no building or structure shall be erected on any part of the said lands coloured blue except in accordance with such plans and drawings as shall have been approved by the corporation or as in case of difference between them and such person as aforesaid shall have been determined by arbitration as hereinafter provided :

Provided that if the corporation do not within twenty-eight days after the receipt of such plans and drawings signify in writing their approval thereof they shall be deemed to have approved the same :

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(7) (a) If by reason or in consequence of any act default or omission of the Company or any person claiming through or under them on under or in connection with the said lands coloured blue the stability of Ashton Avenue or the embankment thereunder or of any part thereof is or may be in any way impaired the Company or such person (as the case may be) shall take all such steps and execute all such works (including if so required by the corporation the erection of a retaining wall) for strengthening supporting or underpinning Ashton Avenue or the embankment thereunder as may be reasonably required by the corporation by notice in writing served upon the Company or such person as aforesaid (as the case may be);

(b) If the Company or the person upon whom a notice is served under paragraph (a) of this subsection shall refuse or omit to comply with the requirements specified in the notice within such reasonable period as may be specified therein the corporation may at any time after the expiration of that period enter upon the said lands coloured blue or any part thereof and themselves take all such steps and execute all such works as are required by the said notice and the costs charges and expenses reasonably incurred by the corporation in so doing shall on demand be repaid to them by the Company or the person in default (as the case may be):

(8) Nothing in this Act contained or done thereunder shall—

(a) relieve the Company or any person claiming through or under them from any liability for the support of Ashton Avenue to which the Company or such person as owners or owner for the time being of any lands situate westward of the said lands coloured blue and yellow would for the time being have been subject if this Act had not been passed; or

(b) affect the operation of the Town and Country Planning Act 1932 or any scheme

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made or to be made under the provisions of that Act or of any Act repealed by that Act in relation to the said lands coloured blue or any buildings for the time being erected or to be erected thereon; or

(c) alter or affect any enactment or byelaw relating to the erection of buildings the provision of sewers and drains or other like matters or relieve the Company or any other person from the obligation to comply with any such enactment or byelaw :

- (9) If any difference shall arise between the corporation and the Company or any such person as is referred to in this section such difference shall be referred to and determined by an arbitrator to be agreed upon between the parties in difference or failing agreement to be appointed upon the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers or the President of the Chartered Surveyors' Institution as the case may require and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

12. Where this Act authorises the diversion of a footpath or the making of a new footpath in substitution for an existing footpath or portion thereof the stopping up of the existing footpath shall not take place until such diverted or new footpath is completed to the satisfaction of the highway authority and is open for public use or in case of difference between the Company and the highway authority until two justices shall have certified that the diverted or new footpath has been completed to their satisfaction and is open for public use.

Stopping up
footpaths in
case of
diversion
or making
of new
footpath.

Before applying to the justices for their certificate the Company shall give to the highway authority of the district in which the existing footpath is situate seven days' notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the highway authority of the diverted or new footpath or as from the date of the said certificate as the case may

A.D. 1933. — be all rights of way over or along the existing footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of footpath stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to
private
rights of way
over lands
taken com-
pulsorily.

13. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished if the Company shall so determine and give notice in writing of such their determination to the owner of any right of way referred to therein. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Provision as
to repair
of new
footpaths.

14. The footpaths and highways to be made altered or diverted under the authority of this Act (except the stone steel or other structure of any bridge carrying the same over or under any railway of the Company which structure except where otherwise expressly provided by this Act shall be repaired and maintained by and at the expense of the Company) shall unless otherwise agreed or otherwise specially provided by this Act when completed respectively be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portion or portions of the same footpaths and highways now devolves.

Power to
deviate in
construction
of works.

15. In constructing the works other than the railway and works in connection therewith by this Act authorised the Company may deviate from the lines thereof to the extent of the limits of deviation marked

on the deposited plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet but not so as to increase the rate of inclination as shown on the deposited sections of any altered road or street where such rate is greater than the rate of inclination prescribed by the Railways Clauses Consolidation Act 1845 and where such rate is less than that so prescribed it may be increased to such prescribed rate except where otherwise expressly provided by this Act. A.D. 1933.
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16. If the railway is not completed before the first day of October one thousand nine hundred and thirty-eight then as from that date the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of railway.

17. If the Company fail within the period limited by this Act to complete the railway and open the same for public traffic they shall be liable in respect of such railway to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the same is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the works. Imposing penalty unless railway opened.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Accountant-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Minister of Transport that the Company were prevented from completing or opening such railway by

A.D. 1933. unforeseen accident or circumstances beyond their control
— Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

18. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Period for
compulsory
purchase of
lands.

19. The powers of this Act for the compulsory purchase of lands by the Company shall cease on the first day of October one thousand nine hundred and thirty-six.

Power to
owners to
grant
easements.

20. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest)

required for any of the purposes of this Act to be executed by them in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rent-charges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid. A.D. 1933.
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21. In settling any question of disputed purchase money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement or alteration made or building erected or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and thirty-two if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act. Compensation in case of recently altered buildings acquired by Company.

22. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto therefore the following provisions shall have effect :— Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as the "scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required

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to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the arbitrator to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the arbitrator") shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the arbitrator shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator :
- (5) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or

inquiry shall be borne and paid [by the owner : A.D. 1933.

- (6) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any of the scheduled properties.

23.—(1) The Company may maintain and use the branch railway hereinafter described which has already been constructed (that is to say) :—

A branch railway 43 chains in length wholly in the borough of Ealing in the county of Middlesex

Confirma
tion of
construction
of branch
railway.

A.D. 1933.
—

commencing by a junction with the Company's Acton and Northolt railway at a point 11 chains north-west of Greenford station and terminating at or near the works of the Aladdin Industries Limited in the enclosure numbered 147 on the 25-inch Ordnance map (edition 1914 sheet XV. 3 Middlesex);

and the expenditure of money thereon is hereby sanctioned and confirmed.

(2) The said branch railway shall for the purposes of tolls rates and charges and for all other purposes whatsoever form part of the undertaking of the Company.

Power to
Company
to raise
further
money.

24.—(1) The Company may from time to time subject to the provisions of this Act raise further money in all or any one or more of the following ways (that is to say):—

- (a) By the creation and issue of ordinary stock;
- (b) By the creation and issue of preference stock;
- (c) By the creation and issue of guaranteed stock;
- (d) By borrowing on mortgage of their undertaking;
- (e) By the creation and issue of debenture stock charged on their undertaking;

and without being required in respect of such borrowing or creation and issue of debenture stock to obtain the certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845 :

Provided that the aggregate amount of the moneys so from time to time raised shall not exceed eight million pounds in the whole including any premiums or allowing for any discounts as the case may be on the issue of any such stock as aforesaid :

Provided also that any such guaranteed stock and notwithstanding anything contained in Part II of the Companies Clauses Act 1863 any such preference stock may bear such rate of dividend as the directors of the Company determine at the time or times of the creation or issue thereof.

(2) Section 113 of the Stamp Act 1891 as altered and amended by subsequent enactments shall apply in all respects to the increase of capital authorised by this section as though the issue of any ordinary

stock preference stock or guaranteed stock authorised by this section were the authorisation within the meaning of section 113 aforesaid of the increase of nominal capital of the Company to the amount of such stock issued and in lieu of the stamped statement to be delivered thereunder there shall be delivered by the Company to the Commissioners of Inland Revenue a similar stamped statement on every occasion of and within one month after the issue of any ordinary stock preference stock or guaranteed stock authorised by this section relating to the amount of such issue and all the provisions of section 113 aforesaid (as altered and amended as aforesaid) shall apply thereto subject to the modification imposed by this section.

A.D. 1933.
—

25. The Company shall be entitled to raise by the creation and issue of guaranteed stock in lieu of preference and ordinary stock or either of those stocks any capital which they are by any former Act of Parliament or order or scheme relating to the Company or to any company amalgamated with the Company authorised to raise.

As to
guaranteed
stock.

26. Notwithstanding anything contained in the Companies Clauses Act 1863 or in any other Act any preference stock or guaranteed stock created under the powers of this Act shall (if the Company by the resolution or resolutions from time to time sanctioning the creation thereof so determine) be deemed to form part of and shall rank *pari passu* in all respects with and shall confer the like privileges and shall bear the same dividend and be subject to the like restrictions as the existing consolidated preference stock or consolidated guaranteed stock of the Company or any other preference stock or guaranteed stock of the Company respectively which may be in existence at the date of the creation of such stock or shall rank with such priorities in respect of the said existing stocks and shall confer such privileges and be subject to such restrictions as the Company by the said resolution or resolutions shall determine.

As to pre-
ference and
guaranteed
stocks.

27. If the Company after having created any stock under the powers of this Act determine not to issue the whole of the stock created they may cancel the unissued stock and (subject to the provisions of the first proviso to subsection (1) of the section of this Act of

Power to
cancel
unissued
stock.

A.D. 1933. — which the marginal note is “Power to Company to raise further money”) may from time to time thereafter create and issue instead thereof other stock of an aggregate amount not exceeding the aggregate amount of the stock so cancelled and in like manner the Company may create and issue stock in lieu of any stock which may have been issued and redeemed and the provisions of the last preceding section or of the section of this Act of which the marginal note is “As to redeemable stocks” shall extend and apply to such stock.

Stock
subject to
same
incidents as
existing
stock.

28. Any stock created by the Company under the powers of this Act and the holders thereof shall unless otherwise provided by the terms of creation or issue thereof be subject and entitled to the same powers provisions forfeitures liabilities rights privileges and incidents as if that stock were part of the then existing stock of the Company of the same class and denomination.

Restriction
as to votes
in respect of
preference
and
guaranteed
stocks.

29. Unless as otherwise expressly provided by the terms of the creation or issue thereof the holders of any preference stock or guaranteed stock created by the Company under the powers of this Act shall have the like rights of voting as the holders of the existing consolidated preference stock or consolidated guaranteed stock of the Company respectively.

As to
interest on
debenture
stock.

30. Notwithstanding anything contained in Part III of the Companies Clauses Act 1863 the interest on all debenture stock at any time after the passing of this Act created and issued by the Company under the powers of this Act shall rank *pari passu* with the interest on all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all the principal moneys secured by such mortgages.

Mortgages
already
granted by
Company
to have
priority.

31. All mortgages or bonds granted before the passing of this Act by the Company or by or in the name of any company whose undertaking has under the powers of any Act of Parliament or order or scheme been purchased by the Company or amalgamated with the undertaking of or vested in the Company shall during the continuance of such mortgages or bonds and subject to the provisions of the Acts under which such mortgages or bonds were respectively granted have priority over all mortgages granted after the passing of this Act by the

Company But nothing in this section contained shall A.D. 1933.
affect any priority of the interest on any debenture
stock at any time created and issued by the Company. —

32.—(1) If the Company desire to raise any capital As to re-
by the issue of preference stock or guaranteed stock deemable
or to issue any debenture stock which they are by this stocks.
Act or by any former Act of Parliament or order or
scheme relating to the Company or to any company
amalgamated with the Company authorised to create
and issue but which has not already been issued they
may create and issue such preference stock or guaranteed
stock or debenture stock so as to be redeemable at such
times and in such manner and on and subject to such
terms and conditions and to bear such rate or rates of
dividend or interest to rank for payment *pari passu*
with and to be deemed to form part of such of the then
existing stocks of the Company or otherwise as the
directors of the Company at the time or times of the
creation or issue thereof shall determine.

(2) There shall be stated on the certificate of any
stock which the Company under the powers of this Act
issue as redeemable stock the time at which and the
manner in which and the terms and conditions on and
subject to which such stock is to be redeemed.

(3) For the purpose of providing money for paying
off or redeeming any such redeemable preference stock
redeemable guaranteed stock or redeemable debenture
stock the Company may create and issue other stock
either ordinary stock preference stock guaranteed stock
or debenture stock and either redeemable or not or may
re-issue any preference stock guaranteed stock or
debenture stock originally created and issued in pursuance
of the provisions of this Act Provided that the creation
and issue of any particular class of stock in pursuance of
the provisions of this section do not make the total
amount of that class of stock issued exceed the amount
of that class of stock which the Company are for the time
being authorised to create and issue except during the
necessary interval between the creation and issue of the
new stock and the redemption of the old stock and in
ascertaining the total amount of each class of stock issued
all ordinary stocks preference stocks guaranteed stocks
and debenture stocks shall respectively be deemed to be of
one and the same class.

A.D. 1933.

—
Redemption
fund.

33.—(1) The Company may from time to time set aside out of net revenue and after providing for the payment of interest or dividends on any loans mortgages bonds or debenture stock or rent charge guaranteed or preference stock of the Company and for other fixed charges and obligations such sums as the Company may consider proper for the purpose of forming a fund for the redemption at maturity of any redeemable stock which the Company may have issued in pursuance of the provisions of this Act and which under the conditions of the issue thereof is redeemable wholly or partly in cash and the Company may invest any sums so set apart and the income therefrom in any securities in which trustees are for the time being by law authorised to invest trust funds or in any other securities (not being except as hereinafter provided securities of the Company) in which they may be authorised to invest those sums by a resolution passed at a general meeting of the Company.

(2) All sums so set apart shall be applied to the redemption at maturity of any redeemable stock for the redemption of which they have been set apart or may if the directors of the Company think fit be applied in the purchase of any such stock at a price not exceeding the redemption price and any stock so purchased shall be treated as redeemed.

As to
disposal of
stock.

34. Notwithstanding anything contained in the Companies Clauses Act 1863 in issuing any portion of the stock (including debenture stock) referred to in this Act the Company may dispose of all or any part thereof at such time to such persons on such terms and conditions and in such manner as the directors of the Company think advantageous to the Company.

Amend-
ment of
borrowing
powers
under
previous
Acts.

35. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 or in any former Act of Parliament or order or scheme relating to the Company or to any company amalgamated with the Company the Company may create and issue any debenture stock and may borrow on mortgage of their undertaking any money which the Company are by any such Act order or scheme authorised to create and issue or to borrow respectively without first creating and issuing in accordance with the provisions of any such

Act order or scheme ordinary or preference stock in respect thereof and without being required to obtain the certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845. A.D. 1933.
—

36. All moneys raised by the Company under this Act whether by stock debenture stock or borrowing shall unless otherwise provided by this Act be applied only to purposes to which capital is properly applicable. Application
of moneys
raised by
Company.

37. Nothing in this Act shall prevent the Company from paying such interest on money advanced beyond the amount of calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845 but save as aforesaid no interest or dividend shall be paid out of any capital moneys of the Company. Interest
on money
advanced
beyond
calls.

38.—(1) The Company shall have power and shall be deemed always to have had power on such terms and conditions as they think fit to sell exchange lease mortgage or otherwise dispose of any land vested in the Company or hereafter acquired by the Company under the powers of this or any previous Act which is not at the time of such sale or other disposition being used for the purposes of the Company's undertaking whether or not such land has been previously so used or to retain hold and use such land. Power to
hold or
sell or
otherwise
dispose of
lands.

(2) On any sale or other disposition by the Company under this section the other party thereto shall not be concerned or entitled to inquire whether or not the land is or is not being used for the purposes of the Company's undertaking.

(3) The net proceeds arising on the sale of any such land shall be applied only to purposes to which capital is properly applicable.

(4) Sections 127 to 131 (inclusive) of the Lands Clauses Consolidation Act 1845 shall not apply to any land which is now vested in the Company or is hereafter acquired by the Company under the powers of this or any previous Act.

(5) The provisions of this section shall extend and apply to the Company and any other company in respect of land vested in them jointly and to any joint committee

A.D. 1933. — incorporated or constituted by Act of Parliament on which the Company may be represented in respect of land vested in such joint committee.

(6) Section 54 of the Great Western Railway Act 1929 is hereby repealed.

Amend-
ment of
section 46
of Great
Western
Railway
(Additional
Powers)
Act 1923.

39.—(1) Section 46 of the Great Western Railway (Additional Powers) Act 1923 shall be read and have effect as if for the words “the Company may build and “ fit up houses shops chambers flats offices or any other “ similar buildings ” there were substituted the words “ the Company may erect and fit up buildings of any description.”

(2) In lieu of the provisions for the protection of the Company contained in the Quinton Harborne and Edgbaston Town Planning Scheme the East Birmingham Town Planning Scheme the East Birmingham Town Planning Scheme Amendment Scheme 1917 the East Birmingham Town Planning Scheme Amendment Scheme 1929 the Birmingham (North Yardley and Stetchford) Town Planning Scheme the Birmingham (North Yardley and Stetchford) Town Planning Scheme Amendment Scheme 1929 and the Birmingham (South) Town Planning Scheme respectively the following provisions shall apply and have effect with respect to any building erected by the Company under the powers of this section (that is to say) :—

The provisions of the said respective schemes shall not apply to any buildings erected by the Company under the powers of this section except in so far as the Company may consent to any particular provision of any of the schemes being made applicable thereto. Provided that their consent shall not be unreasonably withheld and any question whether or not consent is unreasonably withheld shall be decided by the Minister of Health but the Minister of Health shall before giving his decision consult with the Minister of Transport and shall if the Company so desire afford them an opportunity of appearing before and being heard by one or more persons appointed for the purpose by the Minister of Health and the Minister of Transport acting jointly.

40. As on and from the passing of this Act the following provisions shall apply and have effect (that is to say):—

A.D. 1933.

—
Provisions
as to
Cambrian
Institute
Oswestry.

- (1) In this section the expression “the trust deed” means the indenture dated the twelfth day of May one thousand nine hundred and nine a copy of which is set forth in the Second Schedule to this Act and the expression “the trust premises” means and includes the land with the buildings erected thereon known as the Cambrian Institute and generally all property real or personal now subject to the provisions of the trust deed:
- (2) The present trustees of the trust deed are hereby discharged from the trusts thereof:
- (3) The trust premises shall by virtue of this Act and without any deed of conveyance or other assurance become and be vested in the Company as trustees thereof subject to the restrictive covenants and conditions contained in the trust deed and upon the trusts declared thereby as modified or varied by the provisions of this section:
- (4) The Company shall hold the trust premises upon trust to permit or suffer the same to be used for the purpose of an institute or club for the benefit of the employees of the Company stationed at Oswestry or within a radius of ten miles thereof and of such other persons as the committee (hereinafter referred to) with the approval of the Company may admit to participation in the use and enjoyment thereof or for any other philanthropic or charitable object (whether of a legally charitable nature or not) which the Company may in their absolute and unfettered discretion consider desirable from time to time and subject thereto upon the trusts declared by the trust deed so far as the same are applicable:
- (5) (a) The existing committee appointed under the provisions of the trust deed shall remain in office until the thirty-first day of December one thousand nine hundred and thirty-three;

A.D. 1933.
—

(b) (i) As on and from the first day of January one thousand nine hundred and thirty-four a new committee shall come into office to be constituted as follows Three members shall be nominated by the Company and nine members (being members of the institute) shall be elected by ballot by the members of the institute at meetings of such members held for that purpose ;

(ii) The three members of the committee to be nominated by the Company as aforesaid shall be so nominated in writing under the hand of the Company's secretary and shall hold office for one year but at the expiration of his year of office any such member shall be eligible for nomination for the ensuing year Any casual vacancy in the members so nominated may be filled up by the Company in like manner but the person so chosen shall retire on the day on which the person in whose place he was nominated would have retired had no vacancy occurred :

(6) Articles 4 13 14 and 18 of the trust deed shall cease to have effect :

(7) Every power exerciseable by the Company as such trustees (other than a power which by law is required to be exercised by a document under seal) and every direction which they are empowered by the trust deed as varied by this section to give may be exercised or given by an instrument in writing under the hand of the Company's secretary :

(8) Subject to and except so far as may be inconsistent with the provisions of this section the trust deed shall continue to have the same validity force and effect in all respects as if this Act had not been passed :

(9) Nothing in this section shall prejudice or affect the rights of the party to the trust deed of the first part thereunder or his successors in title.

Extension
of time for
completion
of railways.

41. The period limited by section 56 of the Great Western Railway Act 1929 for the completion of Railways Nos. 2 3 and 5 authorised by the Great Western Railway Act 1911 and the period as now

limited by the Great Western Railway Act 1931 for A.D. 1933.
the completion of—

- (1) Railway No. 4 authorised by the Great Western Railway Act 1911; and
- (2) Railways Nos. 1 4 and 5 authorised by the Great Western Railway Act 1912;

are hereby respectively extended until the first day of October one thousand nine hundred and thirty-six and the said Acts shall be read and construed as if the period limited by this section for the completion of the said railways had been the period limited by the said Acts respectively for the completion thereof.

42. The several periods hereinafter described (that is to say) :—

Extension
of time for
compulsory
purchase of
lands.

The period as now limited by the Great Western Railway Act 1931 for the compulsory purchase of (a) lands in the parish and county borough of Plymouth in the county of Devon authorised to be acquired by the Great Western Railway Act 1914 (b) lands required for the purposes of or in connection with the alteration of road and construction of bridge at King's Dock level crossing in the county borough of Swansea in the county of Glamorgan authorised by the Great Western Railway Act 1926 (c) lands authorised to be acquired by the Great Western Railway Act 1926 situate in the parish of Upper Swinford in the borough of Stourbridge and in the parish of Pedmore in the rural district of Bromsgrove in the county of Worcester and (d) lands in the parish of Rhyndwyclydach in the rural district of Pontardawe in the county of Glamorgan authorised to be acquired by the Great Western Railway Act 1929;

The period limited by the Great Western Railway Act 1931 for the compulsory purchase of (a) lands in the parish and urban district of Tipton in the county of Stafford and (b) lands in the parish of Gresford in the rural district of Wrexham in the county of Denbigh; and

A.D. 1933.

The period limited by the Great Western Railway (Swansea North Dock Abandonment) Act 1928 for the compulsory purchase by the mayor aldermen and burgesses of the county borough of Swansea of lands required for the construction of Works Nos. 3 4 and 5 by that Act authorised ;

are hereby respectively extended until the first day of October one thousand nine hundred and thirty-six but on that date the powers for such compulsory purchase shall cease except so far as such powers shall then have been exercised.

Amend-
ment of
section 24
of Great
Western
Railway
Act 1930.

43. Section 24 (Provisions as to bridge and foot-bridge at Jersey Marine station) of the Great Western Railway Act 1930 shall be read and construed as if periods of six years and seven years respectively had been prescribed by that section for the construction of works by the Glamorgan County Council and the Company respectively instead of the periods of four years and five years as now prescribed by that section.

As to
retention of
certain
lands.

44.—(1) Notwithstanding anything contained in (a) section 98 of the Great Western Railway Act 1912 (b) section 67 of the Great Western Railway Act 1913 or (c) section 6 of the Callington Light Railway (Abandonment) Order 1924 the Company shall not be required to sell or dispose of such of the lands referred to in those sections respectively as are held by the Company at the date of the passing of this Act but the Company may retain use and appropriate the said lands for the general purposes of their undertaking or may sell lease or otherwise dispose of such lands in such manner at such time or times to such person or persons and on such terms and conditions as they may think fit.

(2) The net proceeds arising on the sale of any such lands shall be applied only to purposes to which capital is properly applicable.

Abandon-
ment of
railways &c.

45. The Company may abandon the maintenance and use of—

So much of the Malmesbury branch railway authorised by the Malmesbury Railway Act 1872 as lies between its junction with the Company's main line near Dauntsey and the

commencement of railway No. 2 by this Act A.D. 1933.
authorised; —

So much of the Company's branch railway known as the Legacy Branch as lies between its junction with the Company's Rhos branch railway and a point 5 chains south of the level crossing by that branch of Fennant Road;

The Company's Henley-in-Arden branch railway authorised by the Henley-in-Arden and Great Western Junction Railway Act 1873;

The Company's Aberthaw branch railway authorised by the Cowbridge and Aberthaw Railway Act 1889;

So much of the Company's Ynysybwl branch railway authorised by the Taff Vale Railway Act 1873 as lies between its termination and a point 40 chains north of Old Ynysybwl halt;

So much of the Company's Stourbridge Extension Canal authorised by the Act 7 Will. IV c. liii as lies between its termination near Oak Lane Himley and a point 7 chains south of the bridge over that canal known as Cinder Bridge.

Subject to the provisions of this Act all the powers and obligations conferred or imposed upon the Company with respect to or in connection with the said railways and portion of canal by this Act authorised to be abandoned shall cease.

46.—(1) Except as in this section otherwise provided nothing in this Act shall be deemed to relieve the Company of any liability which they may be under at the date of the passing of this Act in respect of the maintenance of any bridge (which expression where used in this section includes the approaches thereto) carrying a highway over the railways and portion of canal authorised to be abandoned by this Act and of the highway thereon. As to
bridges.

(2) The Company may at any time give to the authority body or person by whom the highway on either side of such bridge is maintained (hereinafter referred to as "the road authority") three calendar months' notice in writing requiring the road authority to take over the future maintenance of the bridge and the highway thereon upon terms to be agreed between the Company

A.D. 1933. — and the road authority or in default of agreement to be determined by arbitration and when and so soon as such terms have been so agreed or determined the said bridge and the site thereof shall by virtue of this Act be vested in the road authority who shall become and continue to be liable for the maintenance of the bridge and the highway thereon and all obligations upon the Company in respect thereof shall cease.

(3) The Company may at any time remove any such bridge and substitute a solid embankment therefor and alter the level of the highway (but not so as to increase the gradient thereof) and may carry out such other works as may be necessary or desirable in connection therewith and in the event of the Company carrying out such works and restoring the surface of the highway to the reasonable satisfaction of the road authority the embankment and works and the site thereof and the highway thereon shall on the expiration of three years after the completion of the before-mentioned works by virtue of this Act be vested in the road authority and thereupon all obligations upon the Company in respect thereof shall cease.

(4) Any difference arising between the Company and the road authority respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed failing agreement at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

Application
of certain
sections of
Acts of 1923
and 1924.

47. The provisions of section 46 (Powers as to building on or over lands &c. of Company) of the Great Western Railway (Additional Powers) Act 1923 as amended by this Act and of section 66 (As to private street expenses in certain cases) of the Great Western Railway (Additional Powers) Act 1924 shall extend and apply to any lands acquired by the Company under the powers of this Act.

Power to
apply funds
to purposes
of Act.

48. The Company may apply to all or any of the purposes of this Act to which capital is properly applicable any moneys from time to time raised by them and which are not by any of the Acts or any scheme under the Railways Act 1921 or other enactment relating to the

Company made applicable to any special purpose or which being so made applicable are not required for the special purpose. A.D. 1933.
—

49. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any railway or to execute any other work or undertaking. Deposits
for future
Bills not to
be paid out
of capital.

50. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company. Provisions
as to
general
Railway
Acts.

51. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown
rights.

52. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of
Act.

A.D. 1933:

The SCHEDULES referred to in the
foregoing Act.FIRST SCHEDULE.Describing properties whereof portions only may be
required to be taken by the Company.

Area.	No. on deposited plans.	Description of Property.
ALTERATION OF LEVELS OF ROAD AT TY-COCH.		
Borough of Kidwelly - -	3	Field and shed.
	7	Field.

SECOND SCHEDULE.Referred to in the section of this Act the marginal
note of which is "Provisions as to Cambrian Institute
Oswestry."

THIS INDENTURE made the 12th day of May 1909
between ALFRED ROGERS of Plas-ar-Vryn Oswestry
in the county of Salop gentleman of the first part
WILLIAM FLETCHER ROGERS of High Lea Oswestry
aforesaid gentleman WILLIAM OWEN BOULIVANT
ROGERS formerly of No. 56 Perham Road West
Kensington in the county of Middlesex but now of
No. 2 Heathfield Park Willesden Green London
N.W. clerk in holy orders and PHILIP HAROLD ROGERS

A.D. 1933.

formerly of 17 Hamilton Place New Swindon in the county of Wilts but now of 81 Dartmouth Park Road London N.W. clerk in holy orders of the second part and DAVID DAVIES of Plasdinam in the county of Montgomery esquire M.P. THE RIGHT HONOURABLE THE EARL OF POWIS of Powis Castle Welshpool in the county of Montgomery LORD HERBERT VANE TEMPEST of Plas Machynlleth in the county of Montgomery CHARLES SHERWOOD DENNISS of Wilmot Croft Oswestry in the county of Salop railway manager HERBERT EDWARD JONES of Carregllwyd Oswestry aforesaid locomotive superintendent GEORGE CHAMPION McDONALD of Oswestry aforesaid civil engineer SAMUEL WILLIAMSON of Oswestry aforesaid secretary and EDWARD EVANS of 82 Albert Road Oswestry aforesaid carriage joiner (herein called "the Purchasers") of the third part.

WHEREAS by his will dated the 6th day of May 1863 Thomas Rogers late of Stone House in the town of Oswestry aforesaid wine merchant after devising to his wife Melicent Rogers his sons Thomas Whitwell Rogers James Strangward Rogers William Fletcher Rogers and his friend Hugh Pierce of Manchester warehouseman all estates vested in him upon any trust or by way of mortgage and directing his executors to pay to his wife a legacy of £1000 as soon as convenient after his decease gave and devised to his said wife and her assigns during her life the annual sum or yearly rentcharge of £100 without any deduction for any taxes except property or income tax and to be paid half yearly which annual sum or yearly rentcharge testator charged on his real estate called Llwyn situate in or near the town of Oswestry aforesaid and subject to the payment of the said annuity testator gave devised and bequeathed all his messuages farms lands tenements rights of presentation hereditaments and real estate whatsoever and wheresoever unto his said wife and sons and the said Hugh Pierce their heirs executors administrators and assigns according to the tenures of the same respectively To hold to them their heirs executors administrators and assigns To the uses upon and for the trusts intents and purposes and with under and subject to the powers provisoes and declarations thereafter declared concerning the same that was to say as to all that his estate called Llwyn situate in or near to the town of Oswestry aforesaid subject to the said annuity of £100 charged thereon in favour of his said wife To the use of his son Alfred and his assigns for his life with remainder over and the testator appointed his said wife (during her widowhood) and his said sons Thomas Whitwell Rogers James Strangward

A.D. 1933. Rogers William Fletcher Rogers and the said Hugh Pierce trustees and executors of that his will :

And whereas the testator executed two codicils to his said will dated respectively the 19th day of February 1864 and the 6th day of January 1865 which did not affect the said will as hereinbefore recited :

And whereas the said Thomas Rogers died on the 11th day of February 1865 and the said will and codicils were on the 23rd day of May 1865 duly proved in the district registry at Shrewsbury by the said Thomas Whitwell Rogers James Strangward Rogers William Fletcher Rogers and Hugh Pierce power being reserved of making a like grant to the said Melicent Rogers during her widowhood :

And whereas the said Melicent Rogers died on the 17th day of April 1866 :

And whereas by an Order of the Chancery Division of the High Court of Justice dated the 27th day of July 1899 made by the Honourable Mr. Justice North in a matter intituled " In the " matter of a freehold estate called Llwyn consisting of the " messuage and buildings called Llwyn a cottage called Llwyn " Cottage and several pieces of land all in or near to the town " of Oswestry in the county of Salop settled by the will of " Thomas Rogers dated the 6th day of May 1863 and in the " matter of the Settled Land Act 1882 " the said William Fletcher Rogers William Owen Boulivant Rogers and Philip Harold Rogers were appointed trustees under the said settlement created by the said will of the said Thomas Rogers deceased of the said hereditaments for the purposes of the said Act :

And whereas the said Alfred Rogers has agreed to sell to the Purchasers the fee simple of the said piece of land hereinafter described at the price of £329 5s. 0d. :

And whereas the Purchasers are desirous of holding the said piece of land upon the trusts hereinafter declared in relation thereto which are it is apprehended not charitable trusts in the technical sense :

Now this indenture witnesseth as follows :—

1. In consideration of the sum of £329 5s. 0d. to the said William Fletcher Rogers William Owen Boulivant Rogers and Philip Harold Rogers as such trustees as aforesaid paid by the Purchasers on or before the execution of these presents by the direction of the said Alfred Rogers (the receipt whereof the said William Fletcher Rogers William Owen Boulivant Rogers and Philip Harold Rogers hereby acknowledge) The said Alfred Rogers in exercise of the power for this purpose vested in him by the Settled Land Act 1882 and of all other powers (if any) him hereunto enabling and as beneficial owner hereby conveys unto

the Purchasers and their heirs All that piece or parcel of land containing 2,195 square yards or thereabouts situate facing the Gobowen Road in the borough of Oswestry aforesaid and formerly forming part of the estate called Llwyn referred to in the said recited will of the said Thomas Rogers deceased all which piece of land is more particularly delineated and coloured pink in the plan drawn hereon and is hereinafter referred to as "the trust premises" To hold the same unto and to the use of the Purchasers as joint tenants in fee simple subject to the restrictive covenants and conditions hereinafter contained and imposed on the Purchasers their successors and assigns as obligations intended to be binding in perpetuity on the premises hereby assured and all future owners thereof so far as the law will permit Provided always that so far as regards the reversion or remainder expectant on the life estate of the said Alfred Rogers in the hereditaments hereby assured and the title to and further assurance of the same hereditaments after his death the covenants on his part in these presents implied by virtue of the Conveyancing and Law of Property Act 1881 shall extend only to the acts and defaults of the said Alfred Rogers and his heirs and persons now or hereafter claiming through or in trust for him them or some of them but not further or otherwise.

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2. It is hereby agreed and declared between and by the Purchasers that they and the survivors and survivor of them and the personal representatives of such survivor and other the trustees or trustee for the time being of these presents whether original or substituted shall during the lives of all the descendants now in existence of her late Majesty Queen Victoria and during the lives and life of the survivors and survivor of such descendants and during the term of 21 years after the death of such last survivor hold the trust premises upon trust to permit or suffer the same to be used for the purpose of an institute or club for the benefit of the employees of Cambrian Railways Company and of such other persons as the committee (hereinafter referred to) with the approval of the trustees for the time being of these presents whether original or substituted (hereinafter called "the trustees") may admit to participation in the use and enjoyment thereof or for any other philanthropic or charitable object (whether of a legally charitable nature or not) which the trustees may in their absolute and unfettered discretion consider desirable from time to time And in particular (in furtherance of the purpose aforesaid) the trustees may permit and suffer the committee to erect all such buildings upon the said trust premises as the committee shall with the approval of the trustees consider desirable and may in their absolute discretion grant and convey the said trust premises together with all buildings and erections which may be erected thereon to any friendly society duly formed and registered for carrying on a workman's

A.D. 1933. club on the said trust premises or to a company (limited by guarantee) which may be formed for the same purpose.

3. The management and control of the trust premises shall subject to the powers of the trustees be vested absolutely in a committee to be constituted as hereinafter provided. The committee shall make suitable rules and regulations for the management use and enjoyment of the trust premises for the conduct of elections of the members of the committee and of the Institute the conduct of the business of the committee and all purposes connected with the fulfilment of the duties imposed on them by these presents and may alter the said rules and regulations as occasion may require. Such rules shall always provide for the holding of an annual meeting of the members of the Institute in the month of January and the submission to such meeting by the committee of a report and accounts duly audited for the year ending the previous 31st day of December and shall also provide for a special meeting of the members being called at any time on a requisition to that effect signed by at least one-tenth of the members of the Institute being sent to the secretary. Such rules and regulations and any alterations thereof shall when approved by the trustees or by a majority of them be valid and binding on all persons interested.

4. The first committee shall consist of the following persons viz. William Herbert Williams and James Williamson representing the whole of the clerical staff at Oswestry James Dunbar Lawrence Stewart John Herbert Hill Frederic Frost Ben Rogers and Thomas Oliver Irons representing the locomotive carriage and waggon department John Bryan and George Beaton representing the engineers department Henry Warwick and John Thomas Roberts representing the traffic department. The above committee shall remain in office until the 31st day of December 1909 and on that date a new committee shall come into office to be constituted as follows. Three members shall be nominated by the trustees and further members shall be elected by ballot by the persons who shall be properly qualified members of the Institute. For the purpose of this election the members of the Institute shall be divided into four sections viz. :—

- (a) The members belonging to the clerical staff at Oswestry;
- (b) The members belonging to the locomotive and carriage and waggon department;
- (c) The members belonging to the engineers department;
- (d) The members belonging to the traffic department;

and each section shall be entitled to elect one member of the committee as representing every 20 or fractional part of 20 members of the Institute who shall belong to such section

Provided that no section shall be entitled to elect a member of the committee in any year unless there are at least 10 members of the Institute in such section at the date of such election. The three members of the committee to be nominated by the trustees as aforesaid shall be so nominated in writing under the hands of a majority of the trustees for the time being present at a meeting duly convened and shall hold office for one year but at the expiration of his year of office any such member shall be eligible for nomination for the ensuing year. Any casual vacancy in the members so nominated may be filled up by the trustees in like manner but the person so chosen shall retire on the day on which the person in whose place he was nominated would have retired had no vacancy occurred. A.D. 1933.
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5. At the end of the first and every subsequent year after the election of such committee one-third of such committee (other than the members appointed by the trustees) or if their number is not three or a multiple of three the number nearest to one-third shall go out of office. The members of the committee so to retire in each year shall be those who have been longest in office since their last election but as between persons elected on the same day those to retire shall be determined by lot and in each instance the place of each of the retiring committeemen shall be supplied by a member of the Institute elected as provided in paragraph 4 hereof by the section by whom the retiring member was elected. Nevertheless every committeeman so retiring from office may be re-elected immediately or at any future time. Casual vacancies may at any time be filled up by the committee but so that any person elected to fill a vacancy shall only hold office until the date of the next yearly election and shall not be reckoned in computing the one-third of the members who are to retire as above provided. This clause shall have no application to members of the committee nominated by the trustees as aforesaid.

6. The names of the retiring committeemen in each year and the date and place of the election at which persons to fill their places are to be elected shall be kept posted at the principal entrance of the trust premises for 14 days at least before the election. Candidates for election as committeemen shall be proposed by at least two persons qualified to vote at the election aforesaid who shall give to the committee or as they shall direct notice in writing of their intention in that behalf seven days at least before the election and for seven days at least before the election the names and addresses of the candidates and their proposers shall be posted at the principal entrance of the trust premises.

7. Subject to the reasonable use of the trust premises for the purposes aforesaid and subject as herein provided the committee may at any time let the whole or any part or parts of the

A.D. 1933. — trust premises to any person or persons society or societies for meetings concerts entertainments balls receptions or the like purposes upon such terms and at such rents as they may think proper and all moneys received by the committee in respect of any such letting as aforesaid or otherwise under or for the purposes of these presents shall be applied in repairing and improving the trust premises and the fittings and furniture thereof and in keeping the same and the fittings and furniture from time to time therein insured against fire and in paying all rates taxes and other outgoings from time to time becoming payable in respect thereof and in paying all expenses of carrying on the said trust premises and in paying the wages of all officers and servants whom the committee may think proper to employ for the purposes of these presents and in insuring such officers and servants under the Workmen's Compensation Acts or otherwise in executing the trusts and powers herein contained and any surplus may be from time to time accumulated by the committee and appropriated from time to time for purposes connected with the trust premises as they shall think proper Provided that no part of the trust premises shall be used for the purposes of meetings of any trade union or combination of employees nor for any meetings of a political character nor for any other purpose which the trustees or a majority of them may by writing under their hands disapprove.

8. Meetings of the committee shall be held at such times (not being less than once in every three months) as the committee shall prescribe and seven days' notice of every meeting specifying the business to be considered shall be sent to each committeeman by such officer as the committee shall appoint for that purpose.

9. At each meeting of the committee such person as the committeemen present shall appoint shall be chairman and five shall be a quorum and every question shall be determined by the majority of the committee present and voting thereon and in case of equality the chairman shall have a second or casting vote.

10. A minute book shall be kept by the committee and all proceedings of the committee shall be entered therein.

11. The committee may from time to time delegate any of their powers to sub-committees consisting of such member or members of their body as they may think fit.

12. Any notice to be given to a member of the committee under these presents shall be sufficiently given if sent through the post to his usual or last known place of residence in or near Oswestry.

13. The trustees shall meet at least once a year and may make any necessary rules for the conduct of their meetings. The secretary of the Cambrian Railways Company for the time being shall be the secretary to the trustees. A.D. 1933.

14. Every power exercisable by the trustees hereunder and every direction hereby provided to be given by the trustees shall be exercised or given by means either of a resolution in writing signed by all the trustees or by a resolution passed at a meeting of the trustees (duly convened) by a majority of the total number of trustees.

15. No beer porter wines spirits cider or other alcoholic or intoxicating drink whatsoever shall be brought on to or be kept sold distributed given away used or consumed on the said premises or any part thereof nor shall any gambling be allowed thereon.

16. The trustees may at any time or times during the period specified in clause 2 hereof if in their discretion it shall be advisable to do so :—

- (a) Sell the trust premises or any part thereof; or
- (b) At the request of the committee mortgage the same for the purpose of raising money for capital expenditure either in building or furnishing the proposed Institute or making permanent additions to or alterations of buildings on the said trust premises.

The trustees shall hold the net proceed of any such sale upon trust to apply the same wholly or in part in the purchase or acquisition of other premises to be held by them upon the trusts hereby declared of the trust premises and on any sale made under the provisions of this clause no purchaser shall be concerned to inquire as to the existence of circumstances justifying such sale and no agreement for any such sale shall be impeachable by any person interested in the trust premises on the ground that such agreement is not a valid and bona fide exercise of the power of sale hereby conferred upon the trustees.

17. At the expiration of the said period specified in clause 2 of these presents the trustees or trustee shall thenceforth hold the trust premises or the proceeds of the sale thereof for such charitable purposes connected with the town of Oswestry as they or he may in their or his absolute discretion deem fit and he or they shall for that purpose have full power and authority to execute such foundation deed setting forth such charitable trusts and regulating the management thereof as they or he may think proper and they or he or any one or more of them may be appointed the trustees of such charitable trusts.

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18. The power of appointing a new trustee or new trustees contained in section 10 of the Trustees Act 1893 shall apply to these presents.

19. And the trustees for themselves their successors and assigns and with intent to bind all persons in whom the hereditaments hereby conveyed shall for the time being be vested but not so as to be personally liable under this covenant after they shall have parted with the ownership of the said hereditaments hereby covenant with the said Alfred Rogers and his successors in title as follows :—

- (a) That they will within 6 calendar months from the date hereof erect a wall or other close fence 4 feet high at least between the points marked A B and C on the plan hereon :
- (b) That they will not cause or allow any noisy noxious or noisome business to be carried on upon the said piece of land or in or upon any of the buildings to be erected thereon nor erect thereon any buildings other than dwelling-houses of the annual value of £16 each at the least or an Institute with necessary outoffices and that all buildings so erected shall be built up to but not in front of the building line shown on the said plan :
- (c) That in the event of the said Alfred Rogers at any time hereafter laying out the piece of land coloured brown on the plan as a new street the trustees will when required by the said Alfred Rogers or by the local authority make and construct to the satisfaction of the local authority one-half of the proposed street or road and pay one-half of the cost of a sewer in such new street or road shown on the said plan Provided that the said Alfred Rogers shall not be required to open out such proposed new street until he shall have sold land on the opposite side thereof and then only to the extent of the land so sold.

20. Provided always that from and immediately after the opening of the said piece of land coloured brown or any part thereof as a new street the trustees shall have and the said Alfred Rogers hereby grants to them their heirs and assigns accordingly a right of way (in common with all others to whom the like privilege may be granted) over the same at all times and for all purposes to and from every portion of the land hereby conveyed Provided also that the trustees their heirs and assigns shall not be entitled to any right of light or air which would in any manner diminish or interfere with the free and unrestricted user of any adjoining or neighbouring property now belonging to the said Alfred Rogers either for building or any

other purpose and the conveyance herein contained shall not be deemed or construed to imply the grant of any such right. A.D. 1933. —

In witness whereof the said parties to these presents have hereunto set their hands and seals the day and year first before written.

Signed sealed and delivered by
the before named ALFRED
ROGERS in the presence of } ALFRED ROGERS (L.S.)
H. JACKSON
Solicitor
Oswestry.

Signed sealed and delivered by
the before named WILLIAM
FLETCHER ROGERS in the } W. FLETCHER
presence of } ROGERS (L.S.)
H. JACKSON
Solicitor
Oswestry.

Signed sealed and delivered by
the before named WILLIAM
OWEN BOULIVANT ROGERS in } W. O. B. ROGERS (L.S.)
the presence of }
LILIAN L. ROGERS
2 Heathfield Park
Willesden Green
Wife of Rev. W. O. B. Rogers.

Signed sealed and delivered by
the before named PHILIP
HAROLD ROGERS in the } PHILIP H. ROGERS (L.S.)
presence of }
EVELINE SARGEANT
Spinster
81 Dartmouth Park Road.

Signed sealed and delivered by
the before named DAVID
DAVIES in the presence of } DAVID DAVIES (L.S.)
W. KENRICK MINSHALL
Solicitor
Oswestry.

A.D. 1933. Signed sealed and delivered by }
 — THE EARL OF POWIS in the presence of } POWIS (L.S.)
 W. KENRICK MINSHALL.

Signed sealed and delivered by }
 LORD HERBERT VANE TEMPEST in the presence of } HERBERT VANE TEMPEST (L.S.)
 W. KENRICK MINSHALL.

Signed sealed and delivered by }
 the said CHARLES SHERWOOD DENNISS in the presence of } C. S. DENNISS (L.S.)
 W. KENRICK MINSHALL.

Signed sealed and delivered by }
 the said HERBERT EDWARD JONES in the presence of } HERBERT E. JONES (L.S.)
 W. KENRICK MINSHALL.

Signed sealed and delivered by }
 the said GEORGE CHAMPION McDONALD in the presence of } G. C. McDONALD (L.S.)
 W. KENRICK MINSHALL.

Signed sealed and delivered by }
 the said SAMUEL WILLIAMSON in the presence of } S. WILLIAMSON (L.S.)
 W. KENRICK MINSHALL.

Signed sealed and delivered by }
 the said EDWARD EVANS in the presence of } EDWARD EVANS (L.S.)
 W. KENRICK MINSHALL.

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